FIELD GUIDE 04 · EDUCATION & ACADEMIC LEADERSHIP

EB-1A

for Educators

THE ACADEMIC AUTHORITY

A premium guide for professors, deans, curriculum architects, and education leaders building a self-petitioned extraordinary ability case

AiVass

Published by AiVass LLC

PURPOSE. PROOF. PERMANENCE.

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Before You Begin

Legal disclaimer — please read

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WHERE THIS GUIDE SITS

This is a **field guide**. The **AiVass EB-1A Master Guide** covers the full legal framework and all ten criteria in general terms; Chapter 2 here restates the essentials so this guide stands alone. Everything else addresses the educator's particular problem: **institutional excellence is not field-level acclaim**, and the distance between them is where most education petitions are lost.

How to Use This Guide

- **Beginner — "Am I extraordinary, or just excellent?"** Chapters 1–3 and the self-assessment in Chapter 12.
- **Advanced — "How do I prove my work left my institution?"** Chapters 4–9. Category selection, adoption evidence, rankings and grants, judging, publication context, and the sprint plan.
- **Expert / B2B — "How do we route and run education cases?"** Chapter 11. EB-1A/EB-1B/NIW routing logic, intake, exhibit architecture, and the education RFE register.

THE THREE BOXES

Straight from the source

Blue boxes carry the controlling authority — statute, regulation, or the USCIS Policy Manual.

Strategy note

Gold boxes carry AiVass strategy: how strong education cases are positioned, and where weak ones fall apart.

The bottom line

Navy boxes distill the chapter into the one thing to remember.

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CHAPTER

01

Education — The Underused Field

Named in the statute, and almost nobody claims it.

Education is one of the five statutory fields in INA § 203(b)(1)(A). It is also, by a wide margin, the least-claimed. Educators who could file EB-1A instead file EB-1B through an employer, or EB-2 NIW into a decade-long queue, because the ten criteria — scholarly articles, judging, original contributions — read like a research scientist's CV rather than a dean's.

That reading is a mistake. Every one of those criteria has an education-native form. And the current USCIS Policy Manual names, **by name**, two factors that establish an academic organization's distinguished reputation: **national rankings** and **government research grants**. The agency was thinking about your world when it wrote that.

What the category offers an academic career

- **Self-petition.** No university, district, or ministry sponsors you. You file your own Form I-140.
- **No job offer, no PERM.** The Policy Manual confirms an EB-1A petition "does not need to be supported by a job offer." You are not bound to a department, a tenure clock, or a visa-sponsoring dean.
- **Freedom to move.** For educators on H-1B or J-1 whose status is chained to one institution, this is the whole point.
- **First preference.** Current for most countries, with premium processing available — and, for Indian and Chinese nationals, dramatically shorter than EB-2 (Chapter 10).

Who this guide is for

- Professors and academic researchers whose field is education, pedagogy, or a discipline taught at university level.

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- Deans, department chairs, provosts, and institutional leaders.
- K-12 system leaders: superintendents, principals of nationally recognized programs, ministry officials.
- Curriculum designers, assessment developers, and instructional architects.
- Teacher-trainers and professional-development leaders working at national scale.
- Ed-tech founders and education entrepreneurs with genuine pedagogical credentials.

The excellent-versus-extraordinary gap

Here is the sentence that costs education petitions: **"I transformed my school."** It is often true, frequently admirable, and — standing alone — legally insufficient. The regulation asks whether you are among the small percentage at the very top of the **field**, and the Manual states that contributions must be of major significance **in the field** — not to one employer, however large or excellent.

Excellent (institutional)	Extraordinary (field-level)
Award-winning teacher at a respected university	National teaching prize with documented selectivity across the country
Redesigned my department's curriculum	Curriculum adopted by 1,200 schools across four states, with outcome data
Published in peer-reviewed journals	Publications cited well above field norms; textbook in its third edition with a major academic publisher
Chaired my department	Dean of a nationally ranked school holding federal research grants; architect of a national reform
Trained my school's teachers	Trained 4,000 teachers under a ministry mandate; the model is now the national standard

The bottom line

Education is a named field with a specific trap: excellence inside an institution reads to USCIS as a job well done. Acclaim outside it reads as extraordinary ability. This guide is about crossing that line — and proving you crossed it.

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CHAPTER

02

The Standard in Plain English

Three prongs, one definition, two steps.

The three prongs

> **Straight from the source**
>
> **1.** Extraordinary ability in education, demonstrated by **sustained national or international acclaim**, with achievements recognized through extensive documentation.
>
> **2.** Intent to **continue working in your area of extraordinary ability** in the United States.
>
> **3.** Your entry will **substantially benefit the United States** in the future.
>
> *— INA § 203(b)(1)(A); USCIS Policy Manual, Vol. 6, Pt. F, Ch. 2*

The definition

> **Straight from the source**
>
> "A level of expertise indicating that the individual is **one of that small percentage who have risen to the very top of the field of endeavor**." — 8 C.F.R. § 204.5(h)(2)

Two phrases matter enormously for educators. **"Field of endeavor"** — yours to define, in Chapter 4; "education" is too broad, "fourth-grade literacy in one district" too narrow. And **"no age limit, no fixed time frame"** — the Manual states a person "may be very young or early in his or her career and still be able to show sustained acclaim." The tenure clock is not the immigration clock.

Two pathways in

- **Pathway A — one-time achievement.** A major, internationally recognized award. Almost no education petition travels this road, and there is no comparable-evidence substitute for it.
- **Pathway B — three of ten criteria.** Your road. Meet at least three — or evidence properly argued as comparable to them.

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Then: the two-step test

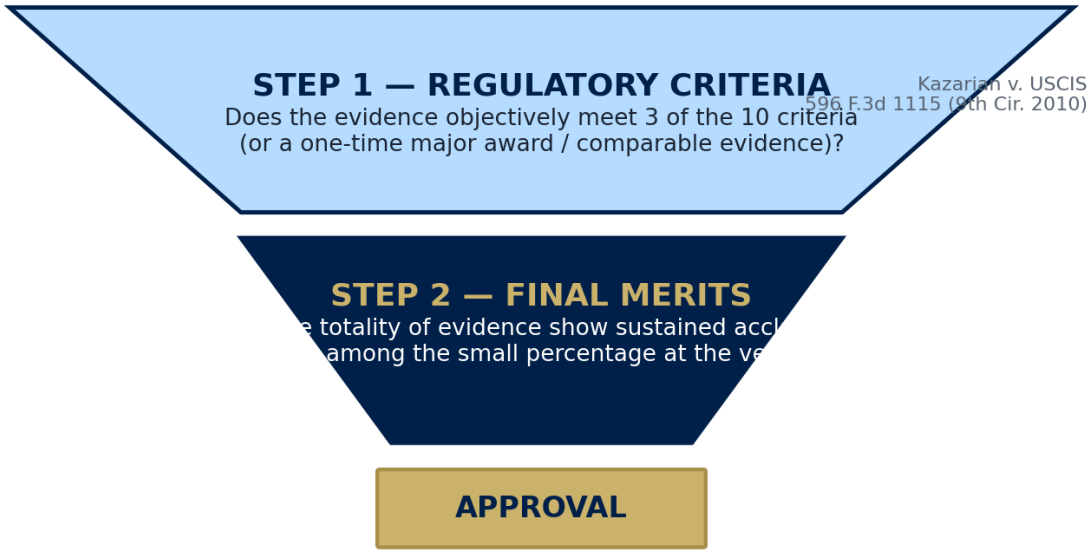


Figure 2.1 — The Kazarian two-step analysis.

Step 1: do your documents objectively meet three criteria? Step 2: does the **totality** show you among the small percentage at the very top? The Manual is blunt that meeting three criteria **"alone does not establish"** eligibility. For educators, Step 2 is where "excellent at my institution" and "extraordinary in the field" finally get separated.

Three rules that shape education cases

- **Sustained means maintained.** A landmark reform in 2019 with silence since invites the question whether the acclaim persists. Build for the last 24 months.
- **Letters are not the cornerstone.** Academia runs on letters, and this category discounts them: witness statements "should not form the cornerstone" of the claim, must be corroborated by documents, and acclaim must extend beyond your professional acquaintances.
- **Volume is not persuasion.** A 600-page tenure dossier is not a petition. USCIS warns that voluminous documentation may not be persuasive.

> **The bottom line**
>
> Three prongs. One definition. Two steps. Your task is to show that the field — not the faculty senate — recognizes you.

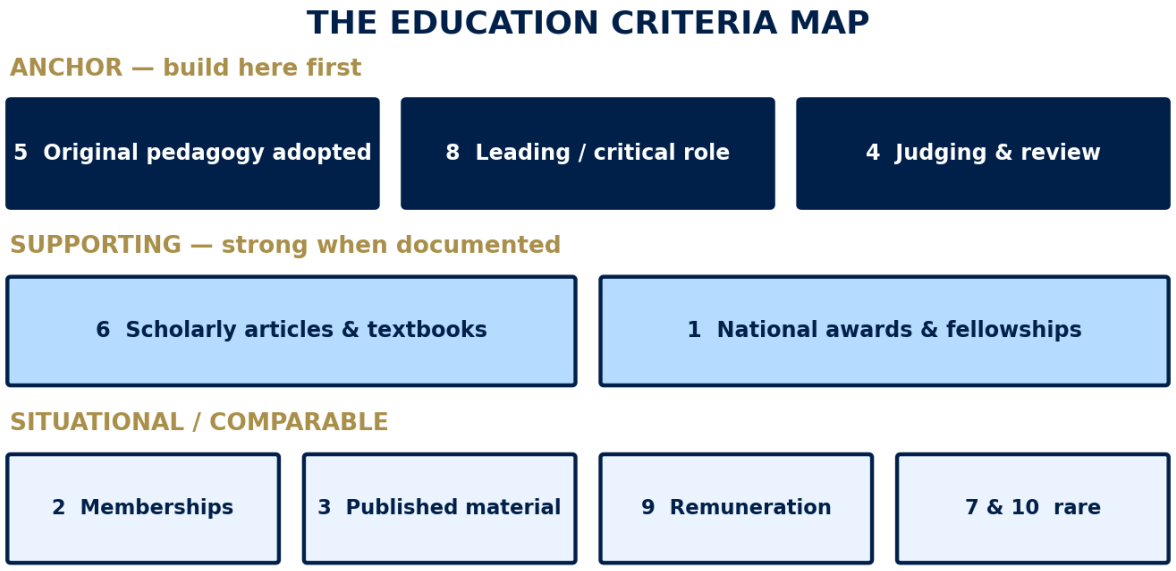
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CHAPTER

03

The Education Criteria Map

Where academic careers become evidence.



USCIS names two academic reputation factors by name: national rankings and government research grants.

Figure 3.1 — The Education Criteria Map. Anchor first, support second, situational last.

The three anchors

- **Criterion 5 — original contributions of major significance.** The educator's heavyweight: a curriculum, method, or assessment instrument adopted beyond your own institution. Chapter 5.
- **Criterion 8 — leading or critical role.** Deanship, chair, founding directorship — and the Manual's own academic reputation factors: national rankings and government research grants. Chapter 6.

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- **Criterion 4 — judging the work of others.** Accreditation panels, national curriculum boards, external examiner roles, grant review. The most buildable criterion in the book, and educators are already doing it. Chapter 7.

The two supports

- **Criterion 6 — scholarly articles and textbooks.** Available to most academics. The trick is context: education citation baselines are far lower than STEM, and you must say so with data. Chapter 7.
- **Criterion 1 — national awards and fellowships.** National teaching prizes, ministry honors, competitively awarded fellowships — with a dossier proving selectivity. Chapter 8.

The situationals

- **Criterion 2 — memberships.** Elected fellows of national education academies and learned societies. File the bylaws and the election statistics.
- **Criterion 3 — published material about you.** National or education-trade coverage naming you as the architect of a method or reform — not coverage of your university.
- **Criterion 9 — remuneration.** Salary against discipline- and rank-specific faculty surveys; endowed-chair stipends; consulting retainers.
- **Criteria 7 & 10.** Rarely applicable — unless you are a professor of fine arts whose own creative work is exhibited.

The K-12 and practitioner question

Nothing in the regulation restricts "education" to higher education. A superintendent, a curriculum architect, or a teacher-trainer can qualify — but several criteria will not **readily apply** to those occupations, which is precisely the trigger for comparable evidence under § 204.5(h)(4). Chapter 8 shows how to argue it: ministry commendations, national training mandates, and adoption at system scale, each mapped to a named criterion with an equivalence argument.

> **Strategy note — the 4–6 rule**
>
> Three criteria is the legal floor, not the target. Approved education petitions typically evidence four to six, with Criterion 5 (adoption) or Criterion 8 (leadership at a ranked, funded institution) carrying real weight. Three thin criteria is a plan for an RFE.

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Your first pass

Criterion	✓ Have it	⚠️ Partial	✗ No
5 — Original pedagogy adopted elsewhere			
8 — Leading / critical role			
4 — Judging & review			
6 — Scholarly articles & textbooks			
1 — National awards & fellowships			
2 — Memberships			
3 — Published material about me			
9 — Remuneration			

The bottom line

Anchor on 5, 8, and 4. Support with 6 and 1. Everything else is upside — or a comparable-evidence bridge.

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CHAPTER

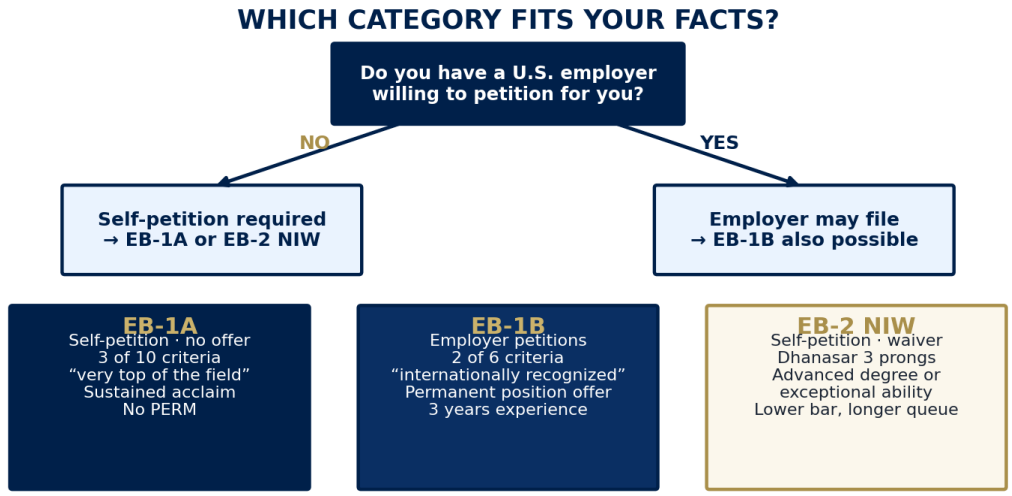
04

Category Selection & Field Definition

EB-1A, EB-1B, or NIW — and top of what?

Three doors, one set of facts

Educators are the only field routinely eligible for three distinct immigrant pathways. Choosing wrong costs years. Choose deliberately, with counsel, and understand the trade.



Many educators qualify for more than one. The right choice depends on your evidence, your employer, and your country of chargeability.

Figure 4.1 — Category selection. Many educators qualify for more than one.

	EB-1A	EB-1B	EB-2 NIW
Who petitions	You (self-petition)	Your U.S. employer	You (self-petition, with waiver)

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	EB-1A	EB-1B	EB-2 NIW
Job offer required	No	Yes — a permanent research or tenure-track position	No
Standard	"Small percentage … very top of the field"; sustained national or international acclaim	"Internationally recognized as outstanding" in the academic field	Dhanasar: substantial merit & national importance; well positioned; waiver benefits the U.S.
Evidence	3 of 10 criteria (or one-time achievement)	2 of 6 criteria	Three-prong analysis
Experience	No minimum	At least 3 years teaching or research	Advanced degree or exceptional ability
PERM	Not required	Not required	Not required
Queue (India/China)	EB-1 — shorter	EB-1 — shorter	EB-2 — substantially longer

Strategy note — the honest routing rule

If you have a sponsoring employer and an internationally recognized research record, EB-1B is often the lower-friction route — but it binds you to that employer. If you want independence, or you have no sponsor, EB-1A is the only first-preference door. NIW asks less of your acclaim and more of your patience: for Indian and Chinese nationals in particular, the EB-2 queue can erase the advantage of the lower bar. Many strong candidates file EB-1A and NIW in parallel. Discuss that with counsel — it is a real strategy, not a hedge.

Defining your field of endeavor

"Field of endeavor" is the denominator of your case. It also decides which of the three doors your evidence fits. Get it precise.

The AiVass field formula

[Discipline or function] + [subject or population] + [scale]

Too broad	Defensible	Too narrow
Education	STEM curriculum design and teacher development at national scale	Fourth-grade fractions instruction in two districts
Teaching	Higher-education pedagogy for large-	Flipped-classroom delivery in one

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	enrollment science courses	department
Administration	Academic leadership and institutional reform in public higher education	Budget administration at one campus
Assessment	Design of large-scale literacy assessment instruments	One reading test in one province
Ed-tech	Learning-science-based adaptive instruction for secondary mathematics	One app's onboarding flow

Four tests for your definition

1. **The peer test.** Name the top few percent of your field: their titles, institutions, and credentials. If you cannot, neither can the officer.
2. **The stability test.** Does one sentence hold your teaching, research, administration, and intended U.S. work?
3. **The verbatim test.** The same phrase appears in the cover letter, every criterion section, the final-merits argument, and every letter brief.
4. **The stress test.** If the officer widened or narrowed it one notch, does the evidence still fit? Document a fallback.

The administrator's trap

Deans and chairs often define their field as **"academic administration."** It is a defensible field — but only if your acclaim is administrative: reform architecture, institutional turnaround, national policy influence, documented outside your campus. If your recognition is actually scholarly, define the field by your **discipline** and treat the deanship as Criterion 8 evidence. Do not let a title relocate your field away from the place your acclaim lives.

The intent connection

Prong 2 requires intent to continue in the **area of your extraordinary ability**. No job offer is required. Educator evidence of intent: a personal statement describing your intended U.S. teaching, research, or reform work; invitations from U.S. institutions; consulting or advisory agreements; conference and collaboration commitments; and, for those building programs or ventures, a business plan.

The bottom line

Choose the door before you gather the evidence. Then write your field in one sentence and never vary

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it.

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CHAPTER
05

Criterion 5 Masterclass

Original pedagogy — proving your work left the building.

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(v)**
>
> *"Evidence of the alien's original scientific, scholarly, artistic, athletic, or business-related contributions of major significance in the field."*

"Scholarly contributions" is the educator's doorway — and this is the criterion where education petitions are most often won and most often lost. Two elements: the contribution must be **original**, and of **major significance to the field** — the field, not your institution.

The adoption cascade

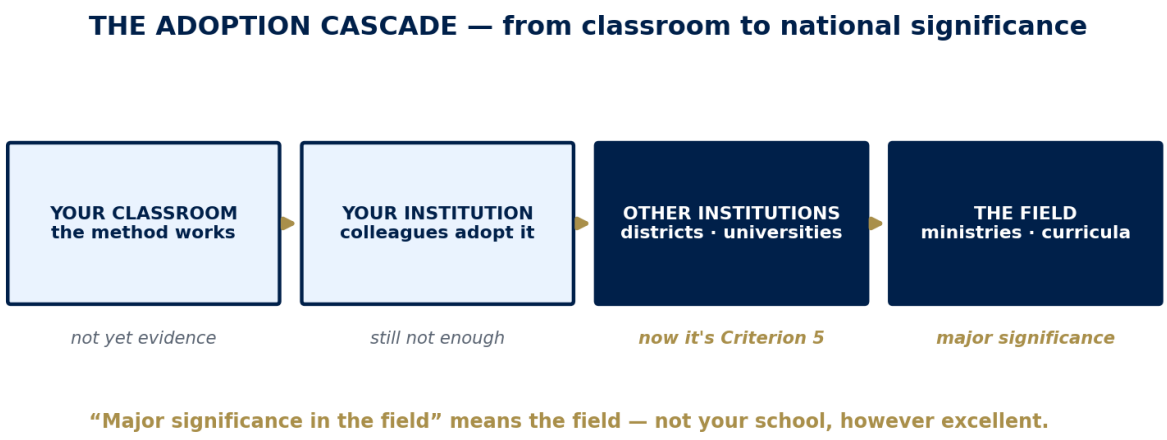


Figure 5.1 — Impact becomes evidence only when it crosses the institutional boundary.

The Manual is explicit that funding, patents, or publication may prove originality but **"will not necessarily establish, on its own"** major significance. For educators, significance has a single reliable proof: **other institutions adopted it, and the outcome changed.**

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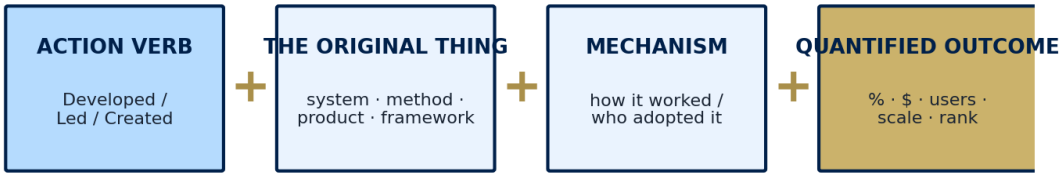
What qualifies as an original educational contribution

- A curriculum or instructional model adopted by school systems, districts, universities, or a ministry beyond your own.
- An assessment instrument used at scale outside your institution — with validation or efficacy data.
- A teacher-training or professional-development model mandated or recommended by an education authority.
- A pedagogical method whose efficacy is published, replicated, and cited by others in the field.
- An open educational resource, platform, or framework with documented adoption across institutions.
- A policy framework you authored that a government or accrediting body adopted.

What fails

- A brilliant course that only you teach.
- Reform that transformed one school, described in adjectives.
- A curriculum you designed with no evidence anyone else uses it.
- Colleague letters praising your innovation, with no adopter named and no document behind them.

The quantification formula



"Developed a trial-recruitment algorithm → adopted across 4 Phase III trials → cut enrollment time 23%, saving ≈ $4.2M."

Figure 5.2 — If a sentence has no number, it is not evidence yet.

CV language (fails)	Evidence language (works)
"Developed an innovative literacy curriculum."	"Authored the Structured Literacy Sequence, adopted by 1,240 primary schools across four states (Exhibit 5.2 ministry letter); independent evaluation shows a 14-point mean gain in Grade 3 reading proficiency across 61,000 students (Exhibit 5.4)."

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CV language (fails)	Evidence language (works)
"Reformed our teacher-training program."	"Designed the mentor-cohort model now mandated for all initial teacher education in [country] (Exhibit 5.7 ministry directive); 4,100 teachers trained under it since 2023; retention at three years rose from 61% to 79% (Exhibit 5.8)."
"Widely respected assessment expert."	"Created the [instrument], licensed to 18 universities in six countries (Exhibit 5.11 license schedule); validated in two peer-reviewed studies with a combined n of 9,300 (Exhibits 5.12–5.13)."

The adoption evidence tracker

Build one page per contribution. Officers should never have to assemble your argument for you.

Adopter	Scale	Outcome	Proving document	Exhibit
Who, outside your institution	Schools · students · teachers	What measurably changed	Ministry letter, MOU, license, study	5.x

Getting the adoption letters

1. Identify every institution, district, or authority that uses your work. Start with the ones you have never met — independent adoption is the strongest evidence there is.
2. Ask for a short, factual letter: what they adopted, when, at what scale, and with what result. Not praise — facts.
3. Attach the underlying artifact: the MOU, the purchase order, the curriculum document with your authorship, the directive.
4. Where possible, obtain outcome data: assessment results, retention rates, enrollment shifts — with the source named.

> **RFE radar**
>
> The signature education denial: "the record establishes the beneficiary's contributions were significant to their employer, but does not establish major significance in the field." It is answered before it is asked — with named adopters outside your institution, at scale, with outcome data.

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The bottom line

Originality is what you built. Major significance is who else uses it, and what changed when they did.

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CHAPTER

06

Criterion 8 Masterclass

Leading or critical role — rankings, grants, and the division pathway.

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(viii)**
>
> *"Evidence that the alien has performed in a leading or critical role for organizations or establishments that have a distinguished reputation."*

Two elements: a **leading OR critical** role — for an institution **or a division or department of one** — and that entity's **distinguished reputation**. Educators frequently have the role and neglect the reputation. Do the opposite.

Proving distinguished reputation — the Manual names your evidence

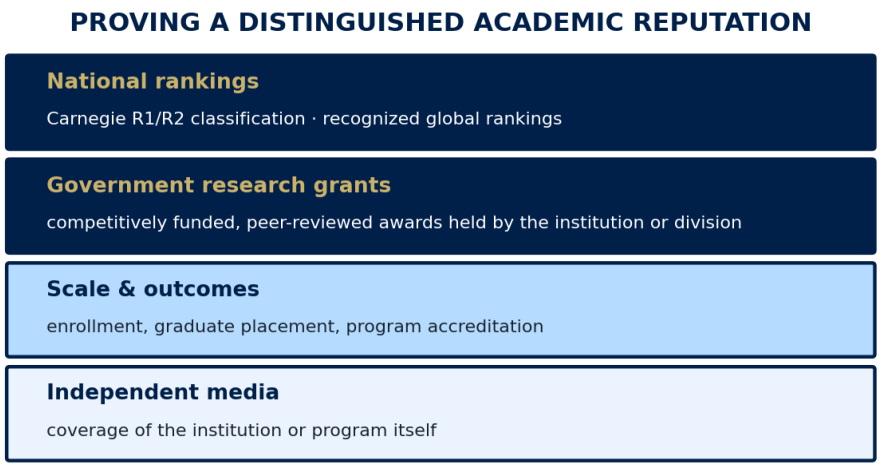


Figure 6.1 — For academia, USCIS names national rankings and government research grants explicitly.

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- **National rankings.** Carnegie classification (R1/R2 high research activity) for U.S. institutions; recognized global rankings for international ones. File the ranking page, dated, with the methodology.
- **Government research grants.** Competitively awarded, peer-reviewed funding held by the institution or your division. Amounts, agencies, and dates.
- **Scale and outcomes.** Enrollment, program accreditation, graduate placement, research output.
- **Independent media.** Coverage of the institution or program itself — not of you.

THE DIVISION PATHWAY

Your university may be unremarkable while your school of education is nationally ranked — or the reverse. The regulation lets you establish the reputation of **the division or department you actually led**. Use it deliberately. Do not borrow a famous university's prestige while your evidence describes a small program; officers read that gap immediately.

The leading prong

- Title and appointment letter, with the reporting structure above and below you.
- Faculty and staff under your authority; students served.
- Budget or endowment responsibility, in dollars.
- Decision rights: hiring, curriculum, accreditation, strategy.
- Duration and continuity.

The critical prong

"Critical" turns on **performance of significant importance to the outcome** — a supporting role can be critical. This is how a founding program director, an accreditation architect, or a research-center lead wins Criterion 8 without a deanship.

> **Strategy note — the but-for sentence**
>
> **"Without [name]'s [specific work], [institution or division] would not have [specific outcome], measured by [number]."**
>
> *"Without Dr. Nakamura's redesign of the clinical placement model, the College would not have achieved CAEP accreditation on first review, nor grown teacher-candidate enrollment 38% over three years."*
>
> If you cannot write that sentence with a number in it, you have a job description, not a critical role.

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Employer letters — the regulatory requirement

Evidence of experience must consist of **letters from employers** (8 C.F.R. § 204.5(g)(1)). For educators: provosts, superintendents, ministry officials, board chairs. Each letter should establish the writer's standing, the institution or division's reputation **with numbers**, your exact role and dates, and one to three specific outcomes with a but-for connection to you. Brief your writers with a one-page memo and metrics. Never draft the letter — the Manual instructs officers that expansive, definition-reciting letters "are generally not persuasive."

Criterion 8 self-check

- ☐ Rankings and grant evidence filed for the correct entity — institution or division.
- ☐ My authority is quantified: faculty, students, budget, decision rights, duration.
- ☐ The but-for sentence is written, and it contains a number.
- ☐ Employer letters are on letterhead, signed, specific, and written in different voices.
- ☐ Both prongs claimed where the facts support both.

> **RFE radar**
>
> Twin challenges: "the institution has not been shown to have a distinguished reputation" and "the role has not been shown to be leading or critical." USCIS told you what it wants for academia. File the rankings. File the grants.

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CHAPTER

07

Judging & Scholarship

Criteria 4 and 6 — the criteria educators already satisfy and rarely document.

Criterion 4 — judging the work of others

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(iv)**
>
> *"Evidence of the alien's participation, either individually or on a panel, as a judge of the work of others in the same or an allied field of specialization …"*

Most academics satisfy this criterion several times a year and keep no record of it. The test: you judged others' work in the same or an allied field, and you can prove you **actually completed** the judging — the Manual's own example is a review request **plus** confirmation the review was done.

WHERE EDUCATORS FIND IT

- Accreditation review panels and site-visit teams.
- National curriculum, textbook, or standards review boards.
- External examiner for doctoral or master's theses at other institutions.
- Grant review panels for education foundations or government agencies.
- Peer reviewer for education-research journals; conference program committees.
- National teaching-award selection committees; fellowship panels.

WHAT TO KEEP, EVERY TIME

☐ The invitation naming you as reviewer, examiner, or panelist.

☐ Proof of completion: the editor's thank-you, the reviewer dashboard record, the signed report, the published panel roster.

☐ A prestige packet: the venue's scale, selectivity, and standing.

☐ A cumulative table — venue, year, number of items reviewed.

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Strategy note

Judging of any caliber satisfies Step 1. At Step 2 the officer weighs whether it reflects top-of-field standing. So judge at venues whose standing you can document, do it repeatedly, and present a table rather than five loose emails. Start today: journals are perpetually short of reviewers.

Criterion 6 — scholarly articles and textbooks

In the regulation — 8 C.F.R. § 204.5(h)(3)(vi)

"Evidence of the alien's authorship of scholarly articles in the field, in professional or major trade publications or other major media."

USCIS defines a scholarly article as one reporting original research, experimentation, or philosophical discourse, written by a researcher or expert, **generally peer reviewed**, typically with footnotes or a bibliography. Peer-reviewed conference proceedings count. Textbooks with recognized academic publishers are strong evidence — file the publisher's editorial process and the edition history.

THE CITATION-CONTEXT PROBLEM

Education citation baselines are **dramatically lower** than in STEM. A researcher with 300 citations may sit in the top decile of education research while looking modest beside a biologist. USCIS does not know this. **Tell it, with data.** The Manual expressly requires you to explain the methodology and source behind any bibliometric tool you cite — an h-index without an explanation is not evidence.

What to file	Why
Your citation count, from a named database, dated	The raw number
The field baseline: median or mean citations for education-research articles in your subfield	The denominator — without it, the number means nothing
Your percentile placement, computed and shown	The claim
Journal impact factors, quartile rankings, or conference acceptance rates	Venue quality at Step 2
Author position — sole, first, or senior	Your contribution

WHAT TO AVOID

- Predatory journals — screen every venue. One bad venue can taint an entire exhibit.
- Self-published reports and "thought leadership" with no editorial review.
- Counting a preprint and its published version as two items.

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- Filing publications with no venue-quality documentation at all.

RFE radar

Step-1 RFEs are rare here; the fight is Step 2. Two papers in obscure venues will not carry final merits. Pair authorship with citation context and adoption (Criterion 5), or position it as support rather than anchor.

The bottom line

You are already judging. You are already publishing. The petition is won by documenting both the way an outsider can verify them.

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CHAPTER

08

Awards, Memberships & the Practitioner Bridge

Criteria 1, 2, and comparable evidence for K-12 and system leaders.

Criterion 1 — awards and fellowships

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(i)**
>
> *"Documentation of the alien's receipt of lesser nationally or internationally recognized prizes or awards for excellence in the field of endeavor."*

Two questions. Did you receive it? And is it **nationally or internationally recognized for excellence in the field**? Institution-internal honors — "College Teacher of the Year" — fail. National teaching prizes, ministry honors, and competitively awarded fellowships succeed, **when the dossier proves the recognition**.

THE AWARD DOSSIER

- The granting body: its charter, national standing, and history.
- Selection criteria and jury composition — named experts.
- Selectivity: nominees versus winners. "One of four selected from 6,200 nominations" is worth more than any adjective.
- Independent media coverage of the award itself, not just your receipt.
- Certified translation for any foreign-language documentation.

One useful clarification: the Manual notes that awards open to a well-known national institution — including R1/R2 universities — or granted by a professional organization **may** be nationally recognized. That is an argument to make with evidence, not an assumption to file on.

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Criterion 2 — memberships

The association, **at the grade you hold**, must require outstanding achievements judged by recognized national or international experts. Elected fellowships of national education academies and learned societies qualify; dues-paying membership in a professional association does not. File the **bylaws**, name the electing committee, and produce the election statistics. Since October 2024, **past membership counts** at Step 1 — recency is weighed later, under sustained acclaim.

The practitioner bridge — K-12, ministry, and system leaders

> **In the regulation — 8 C.F.R. § 204.5(h)(4)**
>
> *"If the above standards do not readily apply to the beneficiary's occupation, the petitioner may submit comparable evidence to establish the beneficiary's eligibility."*

"Readily" means **easily**. A criterion need not be entirely inapplicable — only not easily applicable to your occupation. A superintendent does not publish in peer-reviewed journals; a national teacher-trainer does not exhibit work. That is an occupational fact, and it is exactly what comparable evidence exists for. But a **generic assertion will fail** — you must argue non-applicability specifically, credibly, and with support.

THE FOUR-MOVE DRAFTING PATTERN

1. Name the criterion — "Criterion 6, scholarly articles."
2. Prove why it does not readily apply to your occupation, with support: system-leadership roles are not evaluated through peer-reviewed publication; the field's recognized outputs are directives, frameworks, and adopted curricula.
3. Present the substitute: the national framework you authored, its promulgation by the ministry, its readership among the profession.
4. Argue equivalence of significance, not of form: promulgation to 40,000 teachers by a national authority reaches the field's learned practitioners as a journal reaches researchers.

SUBSTITUTES THAT WORK

What you have	What it can substitute for
A national curriculum framework you authored, promulgated by a ministry	Criterion 6 — scholarly authorship for the field's practitioners
Ministry commendation with documented national selectivity	Criterion 1 — nationally recognized award

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What you have	What it can substitute for
Appointment to a national standards or accreditation body	Criterion 2 or 4 — expert-judged standing and judging
A national training mandate built on your model	Criterion 5 — adoption at field scale

RFE radar

Officers reject comparable evidence when the listed criterion plainly applied. A tenured professor claiming scholarly articles "don't apply" will lose. Reserve the bridge for genuine occupational mismatch — and argue it in the initial filing, never after the RFE. There is no comparable evidence for the one-time-achievement pathway.

The bottom line

The regulation was drafted around researchers. The bridge exists so system leaders, trainers, and practitioners can cross. Argue it — do not assume it.

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CHAPTER
09

Final Merits & the Evidence Sprint

From five checkmarks to one verdict — in 180 days.

Winning Step 2

You meet five criteria. Nothing is decided. Step 2 weighs the **totality** — including evidence that fits no criterion — and asks whether you sit among the small percentage at the very top with sustained national or international acclaim. For educators the whole battle is one distinction: **institutional excellence versus field leadership**.

The Manual's own factors, translated for education

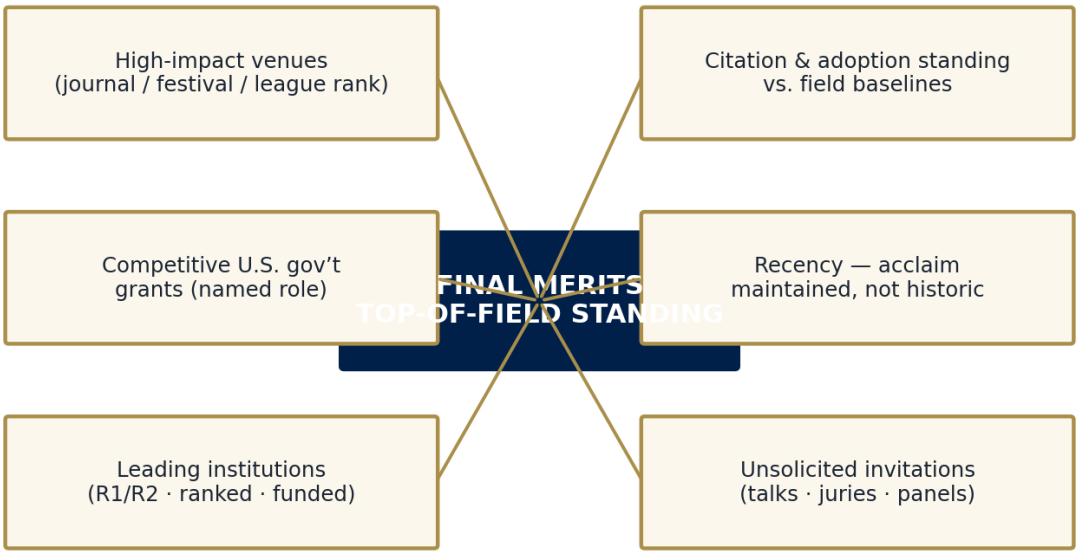


Figure 9.1 — Positive final-merits factors named by USCIS. Each becomes a section of your argument.

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- **High-impact venues.** Journal quartile and impact factor for your subfield — filed with the source.
- **Citation standing.** Your count against the education baseline, with methodology explained (Chapter 7).
- **Leading institutions.** Carnegie R1/R2 or recognized global rankings; institutional research funding.
- **Unsolicited invitations.** Keynotes and invited lectures at recognized conferences — keep the invitation email. "Unsolicited" is the operative word.
- **Named on competitive government grants.** Investigator or researcher on a peer-reviewed, competitively funded award.
- **Adoption at scale.** The education-specific factor: institutions, systems, and ministries using your work.

THE FINAL-MERITS ARGUMENT, IN SEVEN MOVES

1. Restate the standard — the two-step framework and the "small percentage at the very top" definition.
2. Define the peer group concretely — the titles, institutions, and honors that mark the top of your field.
3. Synthesize, do not repeat — one arc: recognition → adoption → standing.
4. Place yourself with comparatives — citation percentile, ranking of institution, adoption counts, award selectivity.
5. Prove the acclaim is national or international, not institutional or local. This is the education case in one sentence.
6. Show the trajectory is alive — your last 24 months, named.
7. Land the U.S. benefit — students taught, teachers trained, methods disseminated, research produced.

Letters — the independence rule

Academia runs on letters; this category discounts them. The Manual: witness statements "should not form the cornerstone," must be **corroborated by documentary evidence**, and acclaim should extend **beyond your personal and professional acquaintances**. Practically:

- Six to eight letters, majority from independent experts — scholars, ministry officials, superintendents at institutions you never served.
- Each writer's standing established before their opinion of you.
- Each letter assigned two to four specific criteria, with corroborating documents already in the file.

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- One comparative sentence per letter: where you stand against the field's top tier, in the writer's professional judgment.
- Brief with facts and metrics. Never draft the letter. Template language across letters is detectable and discounted.

The 30 / 90 / 180-day sprint

DAYS 0–30 — INVENTORY AND MAP

- Decide the category — EB-1A, EB-1B, or NIW — with counsel (Chapter 4).
- Write your field of endeavor in one sentence. Stress-test it.
- Convert your CV into a criteria-tagged evidence list.
- Pull citation data and, critically, the education field baseline. Compute your percentile.
- Collect rankings and institutional grant records for your institution — and separately for your division.

DAYS 31–90 — BUILD AND REQUEST

- Volunteer as a journal reviewer, external examiner, or grant panelist. Keep invitation and completion proof.
- Write to every institution that uses your curriculum or method and request a factual adoption letter with scale and outcome data.
- Pursue fellow-grade election in your learned society. Request the bylaws first.
- Pitch one education-trade outlet a story about your method — not about your institution.
- Send letter-writer briefing memos with metrics and documents attached.

DAYS 91–180 — PROVE AND ASSEMBLE

- Build the adoption evidence tracker for each contribution (Chapter 5).
- Build the institutional reputation dossier — rankings, grants, outcomes (Chapter 6).
- Build the citation-context memo with field baselines (Chapter 7).
- Collect 6–8 letters; assemble exhibits numbered by criterion; then professional review, then file.

> **Strategy note — the patience rule**
>
> The most expensive mistake in EB-1A is filing three months early. Adoption letters take weeks. Fellowship elections happen annually. If you sit at two solid criteria and three maybes, a 90-day build converts maybes into exhibits. Denials cost more than patience — in money, in time, and in the record you carry into your next filing.

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The bottom line

Recognition, adoption, standing, recency. Prove all four and the institutional-versus-field question answers itself.

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CHAPTER

10

Filing, Fees & Timing

Mechanics, money, and the one variable you do not control.



Timelines vary by case, service center, and country of chargeability — always check the current Visa Bulletin.

Figure 10.1 — The EB-1A journey, end to end.

The filing

EB-1A runs on **Form I-140**. A standalone I-140 can be filed online; if you file premium processing or other forms together, file by mail. Approval sets your **priority date** — your place in line, which controls everything after.

Costs

> **Snapshot — fees as verified July 2026**
>
> **Form I-140 filing fee:** $715
>
> **Asylum Program Fee (paid with the I-140):** $600 standard · $300 for small employers (25 or fewer full-time-equivalent employees — the bracket most individual self-petitioners fall into) · $0 for nonprofits. Paying the wrong tier causes rejection at intake.

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Premium processing (Form I-907, optional): 15-business-day adjudication window; a fee adjustment applies to filings postmarked on or after March 1, 2026 — currently $2,965 for the I-140.

Payment method: USCIS has moved away from paper checks and money orders for mailed filings — pay by card (G-1450) or ACH (G-1650) unless exempt.

Fees change. Confirm at uscis.gov/feecalculator and on the current Form G-1055 before you send anything.

Timing

- **Preparation:** 2–6 months of evidence building and drafting. The part you control, and the part that decides the outcome.
- **Adjudication:** 15 business days with premium processing; otherwise months, varying by service center. Premium buys speed, not favor — the standard is identical.
- **After approval:** Form I-485 (adjustment of status, if you are in the U.S. and your date is current) or consular processing abroad.

The Visa Bulletin

Snapshot — July 2026 Visa Bulletin (EB-1)

Worldwide, Mexico, Philippines: Current — no wait for a visa number.

China: Final Action Date of June 1, 2023 (advanced two months).

India: Final Action Date of October 15, 2022 — retrogressed two months; the Department of State has warned of possible further retrogression before the fiscal year ends September 30, 2026.

Context: EB-2 India is unavailable for the remainder of FY2026 — the single strongest reason Indian-born academics are moving from EB-2 NIW toward EB-1A and filing early to secure a priority date.

A snapshot, not a forecast. Check travel.state.gov monthly — the bulletin is the most volatile fact in this guide.

Working with an attorney

This guide is designed to make you a better client, not to replace counsel. AiVass is not a law firm. What changes when you arrive prepared:

- You bring a criteria matrix, not a tenure dossier — the engagement starts at strategy, not triage.

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- Your evidence is already quantified and sourced, so billable hours go into argument, not chasing documents.
- You can evaluate a quote intelligently: a firm that cannot explain its Step-2 theory of your case is not the firm.

The bottom line

You control preparation quality and filing date. You do not control the bulletin. Build well, file when ready, verify fees and policy the week you send.

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CHAPTER

11

Expert & B2B Annex

For attorneys, paralegals, legal-ops teams, and in-house mobility.

This chapter is operational. It assumes professional familiarity with the standard and focuses on repeatable workflow for education-profile EB-1A matters: intake, assessment, gap remediation, exhibit architecture, and pre-filing QC.

Intake questionnaire — education profile

Section	What to capture	Why it matters
Category routing	Sponsoring employer? Research record? Country of chargeability?	EB-1A vs. EB-1B vs. NIW (Ch. 4) — decided before evidence gathering
Field definition	One-sentence field; named peer group; discipline vs. administration; fallback	Denominator of the case; the administrator's trap
Adoption	Every institution/district/ministry using the beneficiary's work; scale; outcome data	Criterion 5 — highest RFE exposure in education
Institution	Carnegie R1/R2 or global ranking; government research grants; division vs. parent	Criterion 8 — USCIS names both factors for academia
Role	Appointment letters, faculty/students/budget, decision rights, but-for outcome	Criterion 8; § 204.5(g)(1) employer letters
Judging	Review invitations + completion proof; accreditation panels; external examining	Criterion 4 — most educators already qualify
Scholarship	Publications, venues, quartiles; citation count + education field baseline + percentile	Criterion 6; bibliometric methodology must be explained
Awards	Grantor charter, jury, selectivity ratio, independent coverage of the award	Criterion 1 — institution-internal honors fail
Memberships	Grade held; bylaws; electing committee; election statistics	Criterion 2 — past memberships now count at Step 1

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Section	What to capture	Why it matters
Practitioner bridge	For K-12/ministry: why listed criteria do not readily apply, plus substitutes	§ 204.5(h)(4) — argue in the initial filing
Recency	All recognition within the last 24 months	Sustained acclaim at Step 2
Intent	Personal statement; U.S. invitations; advisory agreements; business plan	Prongs 2 and 3

Criteria assessment matrix

Score each criterion twice — Step 1 (does the evidence objectively meet the regulatory terms?) and Step 2 (does it carry weight toward top-of-field?). A criterion can pass Step 1 and contribute almost nothing at Step 2.

#	Criterion	Step 1: met?	Step 2: weight	Gap / remediation	Owner	Due
5	Original pedagogy adopted					
8	Leading / critical role					
4	Judging & review					
6	Scholarly articles & textbooks					
1	National awards & fellowships					
2	Memberships					
3	Published material					
9	Remuneration					

Exhibit index architecture

- Number by criterion: 3.1, 3.2 … 5.1, 5.2 … so any claim is verifiable in seconds.
- One cover sheet per exhibit: what it is, which criterion element it satisfies, what it proves.
- Certified translations for every foreign-language directive, curriculum document, and certificate; full articles, never clippings.

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- Web evidence captured with URL and access date visible in the capture.
- Order criterion sections by evidentiary strength — not regulatory order.

Pre-filing QC checklist

☐ Category decision documented: EB-1A, EB-1B, or NIW — with the reasoning and the chargeability analysis.

☐ Field of endeavor stated identically in the cover letter, every criterion section, and every letter.

☐ Criterion 5: named adopters OUTSIDE the beneficiary's own institution, with scale and outcome data.

☐ Criterion 8: rankings and government research grants filed for the correct entity (institution or division).

☐ Criterion 8: but-for outcome written, with a number.

☐ Criterion 4: completion proof, not invitations only.

☐ Criterion 6: citation count, education field baseline, percentile, and bibliometric methodology all filed.

☐ Criterion 6: every venue screened for predatory publishing.

☐ Criterion 1: award dossier proves national recognition; institution-internal honors excluded.

☐ Criterion 2: bylaws filed; electing committee named; grade specified.

☐ Comparable evidence: non-applicability argued per-occupation and mapped to a named criterion.

☐ Letters: independent-majority, distinct voices, each claim corroborated by a document.

☐ Recency: documented recognition within the last 24 months.

☐ Fees verified on the current G-1055; Asylum Program Fee tier correct.

☐ Policy Manual updates page checked within 30 days of filing.

RFE risk register — education profiles

Criterion 5: "significant to the employer, not of major significance in the field." The signature education denial. Remedy: named adopters outside the institution, at scale, with outcome data.

Criterion 8: "institution not shown distinguished." Remedy: Carnegie R1/R2 or recognized global ranking, plus government research grants — the two factors USCIS names for academia.

Criterion 6: "citation record not shown to be significant." Remedy: education field baseline plus percentile, with the bibliometric methodology explained as the Manual requires.

Criterion 4: "participation as a judge not established." Remedy: completion proof — editor confirmation, signed report, published roster.

Criterion 1: "award is institution-internal" · "national recognition not established." Remedy: award

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dossier with selectivity ratio and independent coverage.

Comparable evidence: “the listed criterion readily applies.” Remedy: reserve the bridge for genuine occupational mismatch; argue it specifically, with support.

Final merits: “meets criteria but acclaim is institutional rather than national.” Remedy: peer-group definition, adoption counts, invited talks, grant records, recency.

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CHAPTER
12

Myths, Red Flags & Your Self-Assessment

Score the record you have. Then build the record you need.

Eight myths that keep qualified educators from filing

The myth	The reality
“EB-1A is only for scientists and Nobel winners.”	Education is one of the five statutory fields, and the regulation asks for “lesser” nationally recognized awards.
“I need my university to sponsor me.”	No job offer is required. You self-petition. EB-1B needs an employer; EB-1A does not.
“Teaching awards don’t count.”	National teaching prizes with documented selectivity are Criterion 1 evidence. Institution-internal honors are not.
“I don’t publish enough for EB-1A.”	Scholarly articles are 1 of 10 criteria. Adoption of your curriculum (Criterion 5) is often stronger.
“My citation count is too low.”	Education baselines are far below STEM. File the baseline and your percentile — the number means nothing alone.
“K-12 leaders can’t qualify.”	Comparable evidence exists precisely for occupations the listed criteria do not readily fit (Ch. 8).
“Transforming my school proves extraordinary ability.”	It proves institutional excellence. Major significance means the field — the distance between them is this guide.
“NIW is easier, so it’s better.”	Lower bar, far longer queue. For Indian and Chinese nationals, EB-2 is currently the slower door (Ch. 10).

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Ten red flags to fix before you file

- ☐ Impact described entirely inside your own institution.
- ☐ A curriculum or method with no named adopter outside your employer.
- ☐ “Transformed,” “revolutionized,” “widely respected” with no number attached.
- ☐ Institution-internal teaching awards presented as nationally recognized.
- ☐ A citation count filed with no field baseline and no methodology.
- ☐ Publications in venues you have not screened for predatory practices.
- ☐ Judging claimed on invitations, with no proof of completion.
- ☐ Memberships filed without bylaws or the electing committee named.
- ☐ Letters from your dean, your chair, and your co-authors — with no independent voice.
- ☐ No documented recognition within the last 24 months.

Case-positioning questions

Answer these in writing before you draft anything. If an answer has no document behind it, that is your next 90 days.

1. Which institutions, districts, or ministries use your work — and which of them have you never worked for?
2. What measurably changed for students or teachers when they adopted it, and who recorded that?
3. Is your institution — or your division — nationally ranked, and does it hold competitive government research grants?
4. What did your institution achieve that it would not have achieved but for you, specifically?
5. Where does your citation count sit against the education-research baseline in your subfield?
6. What have you judged, examined, or reviewed — and can you prove you completed it?
7. Which nationally recognized award or fellowship did you receive, and what was the selectivity ratio?
8. If an officer asked you to name the top 3% of your field, could you? Are you among them, and why?

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The self-assessment scorecard

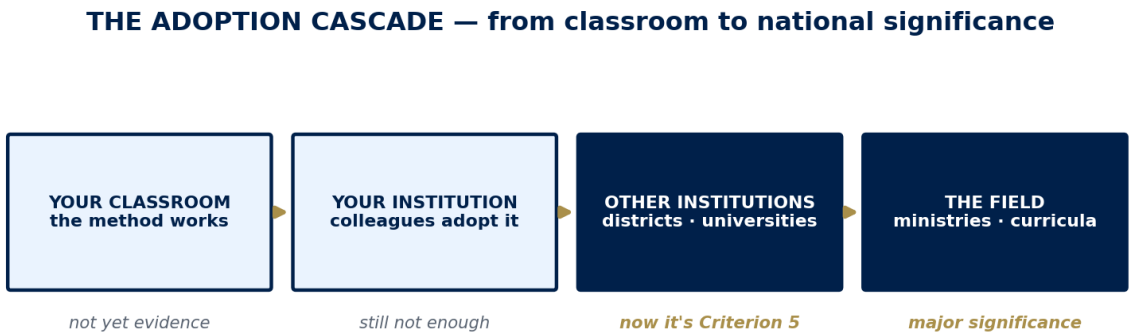


Figure 12.1 — The question behind every score: has the work left your institution?

Component	Points	Your score
Three or more criteria fully evidenced (documents in hand)	30	
Named adopters of your work OUTSIDE your own institution	20	
Institution or division ranking + government research grants documented	10	
Citation percentile computed against an education field baseline	10	
Judging completed and documented at recognized venues	10	
Documented recognition within the last 24 months	10	
Six to eight letter writers identified, independent-majority	10	
Total	100	

Score	Where you stand	What to do next
75–100	Strong. Work has left the institution; final-merits story intact.	Assemble exhibits and seek professional review. Your remaining work is curation and narrative.
50–74	Buildable. The foundation is real; the proof has gaps.	Run the 90/180-day sprint (Chapter 9) against your weakest criteria. Do not file yet.
30–49	Early. Genuine excellence, insufficient field-level acclaim.	Spend 12–24 months building: adoption outside your institution, journal reviewing, fellowship

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Score	Where you stand	What to do next
		election, national awards. Evaluate EB-1B and EB-2 NIW in parallel with counsel.
Below 30	Not yet.	This is information, not a verdict. Build the record, or discuss other categories with an attorney.

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Where to Go From Here

This field guide sits inside the AiVass EB-1A library. Each companion product goes deep on one stage of the build.

Product	Best for	What it does
EB-1A Master Guide	Everyone	The full legal framework and all ten criteria — the foundation of this series.
Eligibility Self-Assessment Workbook	Beginners	Extends Chapter 12 into a full scored diagnostic with decision paths.
Evidence Mapping Workbook	DIY applicants	Turns the criteria masterclasses into a working evidence-to-criteria system.
Field of Endeavor Definition Guide	Professionals	Drills Chapter 4's formula — including the administrator's trap.
Recommendation Letter Toolkit	Applicants & lawyers	Briefing memos, independence hierarchy, corroboration mapping.
Personal Statement Framework	Applicants	Structures intent, future U.S. work, and national benefit.
Petition Assembly Checklist	DIY applicants	Chapter 11's QC pass, exhibit by exhibit.
100 AI Prompts for EB-1A	Everyone	The prompt library for inventory, mapping, gap-scan, and quantification.
Law Firm Toolkit (B2B)	Immigration firms	Intake, criteria matrices, RFE risk register, team workflow at volume.

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Sources & Verification

Every legal statement in this guide traces to a primary authority below. All sources were accessed and verified on **July 8, 2026**. Practitioner commentary, where it informed context, is identified as secondary and non-authoritative.

Source	Publisher	Authority	What it governs here
USCIS Policy Manual, Vol. 6, Part F, Ch. 2 — Extraordinary Ability	USCIS	Primary — agency guidance	Eligibility, the ten criteria, comparable evidence, two-step analysis, final merits, letters, and the academic reputation factors (rankings, government research grants).
8 C.F.R. § 204.5(h) and § 204.5(g)(1)	GPO / NARA	Primary — regulation	Definition of extraordinary ability, the ten criteria, comparable evidence, self-petition, employer-letter requirement.
INA § 203(b)(1)(A) · 8 U.S.C. § 1153(b)(1)(A)	U.S. Congress	Primary — statute	The three prongs: acclaim, continuing work, substantial benefit.
Employment-Based Immigration: First Preference EB-1 · uscis.gov	USCIS	Primary — agency	Self-petition confirmation; no PERM requirement.
Form I-140 page & instructions · Fee Schedule G-1055 · Fee Calculator	USCIS	Primary — agency	Filing mechanics, fees, Asylum Program Fee tiers, payment methods.
Policy Alerts, Sept. 12, 2023 and Oct. 2, 2024	USCIS	Primary — policy	STEM and academic final-merits factors; team awards; past memberships; scope of published material.
Kazarian v. USCIS, 596 F.3d 1115 (9th Cir. 2010)	9th Circuit	Primary — judicial	The two-step evidentiary analysis applied nationwide.
Visa Bulletin, July 2026	U.S. Dep't of State	Primary — agency	Priority dates and retrogression. Volatile: re-check monthly.
17 U.S.C. § 105 · Georgia v. Public.Resource.Org (2020)	Congress / SCOTUS	Primary	Public-domain status of U.S. government works and legal edicts.
Immigration law-firm alerts and practitioner commentary (2024–2026)	Various	Secondary — non-authoritative	Context and cross-confirmation only. Never the basis of a legal statement in this guide.

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Final reminder

This guide is educational. It is not legal advice, and AiVass LLC is not a law firm. Before filing, have a licensed U.S. immigration attorney review your petition, and verify every fee, date, and policy statement at uscis.gov. Guidance changes; your case deserves current law.

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